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Case Number: 26CHCV01977 Hearing Date: September 24, 2026 Dept: F43

Dept. F43

Hearing Date: 09-24-26

Case # 26CHCV01977, Fassari v. Wicked

Motor Works, et al.

Trial Date: None set.

SPECIAL MOTION TO
STRIKE

MOVING PARTIES: Defendants Wicked Motor Sports and Krikor
Antranik Barsoumian

RESPONDING PARTY: Plaintiff Christian P. Fassari, as trustee of
the Garrett B. Watkins Living Trust dated 11/25/2005

RELIEF REQUESTED

Order striking the Second Cause of Action for
Slander of Title from plaintiff's First Amended Complaint.

RULING: Motion is granted.

SUMMARY OF ACTION

On May 14, 2026, plaintiff Christian P.

Fassari, as Trustee of the Garrett B. Watkins Living Trust dated 11/25/05, (Plaintiff), filed this action concerning the possession and sale of a 2014 Porsche vehicle owned by the Trust.

Plaintiff names Wicked Motor Works, Wicked Motor Sports, and Krikor Antranik Barsoumian as defendants. The complaint asserted causes of action for conversion, fraud and intentional misrepresentation, violation of the Automotive Repair Act (Bus. & Profs. Code, § 9884, et seq.), and declaratory relief.

On July 29, 2026, Plaintiff filed a First Amended Complaint (FAC) against the same defendants and asserting conversion, slander of Title, violation of Penal Code, § 496, and declaratory relief.

On August 19, 2026, defendants Wicked Motor Sports and Krikor Antranik Barsoumian (Defendants) filed the instant special motion to strike the First Amended Complaint's Second Cause of Action (Slander of Title). Defendants also seek attorney fees. Plaintiff filed an opposition on September 11, 2026, and Defendants replied on September 16, 2026.

THE FIRST AMENDED COMPLAINT'S ALLEGATIONS

Garrett B. Watkins died on December 31, 2025. (FAC ¶ 2.) Mr. Watkins left a Will directing that all of his property be distributed to the Garrett B. Watkins Living Trust dated 11/25/05 (the Trust). (Id. ¶ 2.) Upon Mr. Watkins' death, all his right, title, and interests in various property, including a 2014 Porsche vehicle (CA License Plate No. 2XXLR8, VIN: WP0AD2A92ES166355), passed to and vested in the Trust. (Id. ¶¶ 2, 8.) Plaintiff, in his role as trustee, owns the 2014 Porsche vehicle, with title being held in the Trust's name per a Department of Motor Vehicles (DMV) registration filed on March 27, 2026. (Id. ¶¶ 3, 8.) According to Plaintiff, the vehicle's value exceeds \$4,000. (Id. ¶ 8.)

Defendant Wicked Motor Works is a California limited liability company based in Canoga Park, CA that is suspended by the Franchise Tax Board as of May 1, 2025. (FAC ¶ 4.) Defendant Wicked Motor Sports is a California stock corporation based at the same address as Wicked Motor Works. (Id. ¶ 5.) Wicked Motor Sports holds an Automotive

Repair Dealer Registration No. 313673, valid through August 31, 2026. Defendant Krikor Antranik Barsoumian (Barsoumian) founded Wicked Motor Works, is the actual owner, principal, and operator of Wicked Motor Works and Wicked Motor Sports, and conducts an automotive repair business through both entities. (Id. ¶ 6.) Defendants are alter egos of one another and constitute one single business enterprise, sharing the same trade identity, the same principal place of business, the same email and telephone, and common ownership, control, and management through defendant Barsoumian. (Id. ¶ 7.)

Before Mr. Watkins' death, the 2014 Porsche vehicle was delivered to and accepted by Wicked Motor Works for repair work, and Defendants knew the identity of the vehicle's owner and remained in continuous written communication with Plaintiff and Plaintiff's counsel concerning the vehicle. (Id. ¶

9.) On March 11, 2026, Defendants issued an invoice (No. 589743) for work performed on a 2016 Porsche 991.1 Turbo S Coupe-992 GT3 RS Conversion even though the Trust's vehicle is a 2014 Porsche. (Id. ¶ 10.) The invoice was issued in the name of Wicked Motor Works and states Defendants performed "conversion" work (modified the vehicle). (Id.) Based on this, Plaintiff claims no written estimate satisfying Bus. & Prof. Code, § 9884.9 was ever provided and no signed customer authorization exists. But Defendants have refused Plaintiff's requests to inspect the vehicle, provide documents concerning the vehicle's present condition, or present any evidence of any agreement regarding modifying the vehicle.

On March 27, 2026 and April 7, 2026, Plaintiff demanded in writing that Defendants preserve evidence, produce records, and return the vehicle. (FAC ¶ 11.) Also on March 27, 2026, Plaintiff informed Defendants of the Trust's ownership of the vehicle and its registration with the DMV in the Trust's name and requested that Defendants state the exact sum they contended was due, with supporting documentation. Plaintiff also provided Defendants with the current DMV registration showing the Trust as the registered owner, a certified copy of Mr. Watkins' death certificate, and a certification of trust (Prob. Code, § 18100.5), identifying Plaintiff as the currently acting trustee. Plaintiffs maintain that Defendants did not return the vehicle or identify a lawful basis for the vehicle's continued retention.

On April 28, 2026, the DMV mailed a Notice of Pending Lien Sale (Civ. Code, § 3072), indicating a lien-sale application was

submitted by Wicked Motor Sports directly and through a Doe lien sale agent acting at Defendants' direction. (FAC ¶ 12.) According to Plaintiff, the application and attached documentation falsely represented that the vehicle has been "Abandoned on Private Property," and stated a repair amount different from the amount of Invoice No. 589743. However, Wicked Motor Sports was never entrusted with the vehicle, issued no invoice, performed no work in its own name, and holds no claim for compensation secured by the vehicle because the vehicle was entrusted to Wicked Motor Works for repair.

Defendants claim to have performed work and now seek compensation without providing a written estimate or any signed customer authorization. (FAC ¶ 13.) Moreover, Wicked Motor Works performed and billed for the claimed work even though it holds no automotive registration in its own name, violating Bus. & Prof. Code, § 9884.6, subd. (a). (FAC ¶ 13.) Thus, Plaintiff alleges Defendants have no right to compensation for the claimed work, and any purported mechanic's, possessory, or storage lien against the vehicle is invalid and unenforceable as a matter of law.

ANALYSIS

A. Special

Motions to Strike Pursuant to Code of Civil Procedure section 425.16

"A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1).)

The trial court applies a burden shifting analysis when considering a special motion to strike brought under section 425.16 (the "Anti-SLAPP Statute"). (Soukun v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 278.) First, the defense carries the burden of making a threshold showing that the challenged cause of action arises from "any act of that person in furtherance of the person's right of petition or free speech under the [federal or state constitution] with a public

issue.” (Code Civ. Proc., § 425.16, subd. (b); see Soukun, supra, 39 Cal.4th at p. 278.) Second, and only if the defense meets its threshold burden, the burden will shift to the plaintiff to demonstrate a probability of prevailing on the merits of the claims at issue. (See Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67; Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.)

Although an amended complaint supersedes the original complaint, allegations of a prior complaint that were omitted from the amended complaint may be considered in interpreting the amended pleading. (Philipson & Simon v. Gulsvig (2007) 154 Cal.App.4th 347, 360-361; see also Starview Property, LLC v. Lee (2019) 41 Cal.App.5th 203, 212 [“Allowing a defendant to attack newly pled legal claims, whether or not based on existing allegations of protected activity, prevents . . . gamesmanship.”].)

B. First

Step: Plaintiff’s Second Cause of Action arises from Defendants’ protected activity.

“To prevail on an anti-SLAPP motion, the movant must first make ‘a threshold showing the challenged cause of action’ arises from an act in furtherance of the right of petition or free speech in connection with a public issue.” (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 192.)

1. Protected Activity

An act in furtherance of the right of petition or free speech includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e)(1)-(4).)

Defendants contend the acts underlying Plaintiff's slander of title cause of action – the alleged submission to the DMV of the lien sale documentation stating the subject vehicle was “Abandoned on Private Property” – is a protected activity under Section 425.16, subdivision (e)(1) and (e)(2). (Mot. at pp. 9:20-11:9.)

In opposition, Plaintiff claims the DMV's lien-sale intake is ministerial as a statement made to it is not made before, or in connection with an official proceeding. (Opp. at pp. 7:27-9:20.) Plaintiff also contends the slander of title claim arises from the wrongful appropriation of Trust property, not from petitioning. (Opp. at pp. 9:23-10:21.)

The FAC's allegations concerning the slander of title claim state the following: In April of 2026, defendant Wicked Motor Sports directly or through an agent acting at Defendants' direction, published to the DMV lien-sale documentation, stating the subject vehicle had been “Abandoned on Private Property.” (FAC ¶ 22.) The statement was knowingly false because Defendants knew the vehicle was delivered to Wicked Motor Works for repair work, Plaintiff and Plaintiff's counsel communicated with Defendants continuously regarding the delivery of the vehicle, and as such the Defendants at all times knew the identity and whereabouts of the vehicle's owner. (Id. ¶ 23.) On March 27, 2026, before the lien-sale application was submitted, Plaintiff informed Defendants in writing of the Trust's ownership and DMV registration of the Vehicle. On April 7, 2026, before the DMV issued its Notice of Pending Lien Sale, Plaintiff's counsel informed Defendants in writing that the vehicle had not been abandoned and that Plaintiff stood ready to pay all valid, properly substantiated charges. On April 21, 2026, defense counsel wrote to the Bureau of Automotive Repair asserting that “competing claims” had been made “regarding ownership and authority over the vehicle.” Thus, Defendants lied to the DMV. According to Plaintiff, Defendants made the “Abandoned on Private Property” statement with knowledge of its falsity, or with reckless disregard for its truth, with actual malice, and without privilege or justification, for the purpose of inducing the DMV to authorize an illegal lien sale and to extract payment from Plaintiff

under threat of such sale. (FAC ¶ 24.) The statement was not made to protect any legitimate interest of any Defendant as Plaintiff had already offered to pay all valid, substantiated charges. As a result, the false statement disparaged and cast doubt on the Trust's ownership of and right to possession of the vehicle and was reasonably calculated to and did induce the DMV to initiate lien-sale proceedings. (FAC ¶ 25.) Plaintiff has suffered pecuniary loss and impairment of the vehicle's title. (Id. ¶¶ 26-27.)

The court finds that the lien-sale application and the alleged "Abandoned on Private Property" statement published to the DMV in the lien-sale application and documentation is protected activity under Subdivisions (e)(1) and (e)(2) because the statement was not made before and in connection with an official proceeding authorized by law.

In general, the mere submission of a document to a government agency for routine action does not suffice. "[A] nondiscretionary, ministerial act that involves no deliberation or discretionary decisionmaking does not extend protected status to a statement intended to initiate the routine performance of that ministerial act." (Li v. Jin (2022) 83 Cal.App.5th 481, 491, citation omitted.) Thus, the key to determining whether a process is an official proceeding is whether the government agency exercises deliberation or discretionary decisionmaking in response to a filing or merely performs a routine nondiscretionary function.

Here, the Department of Motor Vehicle's (DMV) role under Civil Code section 3071 is not purely ministerial. The DMV lien-sale process is established by statute to address a particular type of dispute (the enforcement of possessory liens on vehicles) and is subject to judicial review. When a lienholder files a lien-sale application under Section 3071, the DMV does not simply stamp and file a document. The DMV notifies all interested parties, provides the interested parties with a Declaration of Opposition form, receives and processes any opposition, and conditions issuance of authorization on the absence of a timely filed Declaration of Opposition. (Civ. Code, § 3071, subds. (a)-(c)(1)-(5), (d)-(g), (j).) If a Declaration of Opposition is filed, the DMV withholds authorization and requires the lienholder to file a court action before the sale may proceed. (Civ. Code, § 3071, subd.

(c)(6).) In this process, the DMV serves in a quasi-adjudicatory role, gatekeeping a property-affecting transaction and authorizing or withholding that has direct legal consequences for all interested parties.

This is somewhat analogous to the Internal Revenue Service's (IRS) application for determining tax-exempt status. (*Li v. Jin* (2022) 83 Cal.App.5th 481, 491-496.) In *Li v. Jun* (2022), the Court of Appeal found that the IRS' tax-exempt status application is entitled to protection under Subdivisions (e)(1) and (e)(2) because the agency exercised deliberative judgment and the determination was subject to judicial review. (See *id.* at pp. 491-494 [discussing process allowing IRS to grant request for tax exempt status under Internal Revenue Code section 501 by assessing the application and the organization's conduct].)

Similarly, the purpose of the DMV's lien-sale application and the Declaration of Opposition mechanism is to channel any disputes into courts. (See *Kibler v. N. Inyo County Local Hosp. Dist.* (2006) 39 Cal.4th 192, 199-204 [noting "official proceeding" where a process is mandated by statute, being subject to judicial review via administrative mandate, and serving matters of public significance comparable to quasi-judicial agencies].)

The DMV's lien-sale application and process is mandated by statute, the DMV's withholding of authorization is reviewable through judicial proceedings, and the process serves the public function of protecting vehicle owners and lienholders in a comprehensive statutory scheme governing vehicle lien enforcement.

Thus, the court finds that Plaintiff's allegation that Defendants filed a lien-sale application for the subject vehicle, containing a knowingly false statement, with the DMV is a protected activity pursuant to Code of Civil Procedure section 425.16, subdivisions (e)(1) and (e)(2).

In opposition, Plaintiff contends the conduct and speech is illegal because defendant Wicked Motor Works performed and invoiced for the repair work and defendant Wicked Motor Sports submitted the lien-sale application, certified the application under penalty of perjury and included false information in the application—that defendant Wicked Motor Sports is a

lienholder and the vehicle was “Abandoned on Private Property.” (Opp. at p. 13:3-28.) Plaintiff claims this is further supported by Defendants’ supporting declaration and evidence.

However, Plaintiff does not allege this as part of the slander of title claim. Even if Plaintiff had raised such allegations, Plaintiff also alleges that all three defendants are alter egos of each other and constitute a single business enterprise. As alleged, Wicked Motor Sports as the entity with the automotive repair registration who shared the same principal place of business and ownership as Wicked Motor Works, acted with and or on Wicked Motor Works’ behalf.

Regardless of this issue, Defendants concede no illegality, and claim the authenticated lien-sale documents affirmatively contradict the FAC’s allegation that the official DMV application contained a false abandonment representation. (Mot. at p. 11:7-9.)

Where a defendant concedes or the evidence conclusively establishes that the asserted protected conduct was illegal as a matter of law, the defendant is precluded from invoking the anti-SLAPP statute. (Flatley v. Mauro (2006) 39 Cal.4th 299, 314-320; Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696 [finding “admittedly” false police report is illegal under Penal Code section 148.5 is not protected activity for anti-SLAPP purposes].)

Because Defendants concede no illegality, the court looks to the parties’ evidence.

In his supporting declaration, defendant Barsoumian claims Mr. Watkins requested and instructed “Wicked” to perform extensive customization of a 2014 Porsche, VIN WPOAD2A92ESI66355. (Declaration of Krikor Antranik Barsoumian ¶ 3.) The vehicle was transferred to Wicked’s place of business and work began. Barsoumian admits Mr. Watkins died before the requested work and the parties’ financial obligations were resolved. (Id. ¶ 4.)

Plaintiff presents a copy of document which Plaintiff identifies as the March 11, 2026, invoice referenced in the FAC. (FAC ¶ 10; Declaration of Christian P.

Fassari ¶ 5, Exh. 2 [Invoice No. 589743].)

The invoice was issued in the name of Wicked Motor Works, is titled "Invoice for Garrett Watkins," describes work performed on a "2016 Porsche 991.1 Turbo S Coupe - 992 GT3 RS Conversion," and states a total of \$207,379.95 (a parts subtotal of \$159,980, labor of \$35,000 in tax (7.75%) of \$12,399.95). (Id., Exh. 2.) Although Plaintiff asserts the invoice is dated March 11, 2026, no such date appears on the document. Plaintiff seems to suggest the invoice was illegal because it contains no written estimate, no reference to any written estimate, and no signature or written authorization by Mr. Watkins, Plaintiff, or any other individual.

On March 27, 2026, the DMV registered title to the vehicle in the Trust's name. (Fassari

Decl. ¶ 3, Exh. 1 [document indicating the registration expired on January 10, 2026, but was renewed on March 27, 2026, and listing the Trust as registered owner].) That same day, Plaintiff

emailed Wicked Motor Works a written demand, identifying the Trust's ownership of the vehicle, including the Certification of Trust, demanding production of records and preservation of evidence, requesting inspection of the vehicle, and asking Defendants to state the exact sum they contended was due with supporting documentation. (Fassari Decl. ¶ 4; Declaration of David J. Glaubiger, Exh. E.) Barsoumian claims Plaintiff also provided a registration card reflecting the Trust as registered owner and a death certificate. (Barsoumian Decl. ¶

5.) Plaintiff did not provide Barsoumian or Wicked Motor Sports with an executed REG 5 form or complete DMV transfer packet. The REG 5 form is an Affidavit for Transfer without Probate form for California Titled Vehicles or Vessels. (See Veh. Code, § 5910, 9255, Prob. Code, §§ 18100.5, 13100.)

At some point in March of 2026, Wicked Motor Sports retained Lien Sales Service to process a lien-sale matter concerning the vehicle and assigned report or file number 212555.

(Declaration of Ron Sachs ¶ 4 [Lien Sales Service's principal].) Plaintiff claims the document identified Wicked Motor Works as the lienholder to contact, stated repairs of \$172,379.95, and identified the vehicle as "Abandoned on Private Property." (Barsoumian Decl. ¶ 6, Exh. 3.) Neither party provides a date for this invoice.

Lien Sales Service obtained a vehicle information report dated March 19, 2026 which listed Mr. Watkins as the vehicle's registered owner

and legal owner and stated the vehicle value of \$199,040. (Sachs Decl. ¶ 5, Exh. A.) Lien Sale Service then prepared an Application

for Lien Sale Authorization and Lienholder's Certification (Civ. Code, § 3071). (Id. ¶ 6, Exh. B.) The application: checks that the car's current market value is over \$4,000; identifies Wicked Motor Sports as the lienholder and Lien Sales Service as the agent acting for the lienholder; identifies Garrett B. Watkins as the registered owner and the person billed; lists towing charges of zero; lists the claimed repair and storage charges; and does not check the box using "Abandoned on private property, owner unknown. (Id. ¶ 7, Exh. B.) Lien Sales Service does not state when the application was first prepared.

The application and supporting materials were submitted on April 1, 2026. (Sachs Decl. ¶¶ 8, 9, Exh. B at p. 2 [signed by Lien Sale Service representative on April 1, 2026].)

At some point, Lien Sales Service generated a separate invoice for the repair costs (\$172,379.95, includes tax) and storage fees (\$700) addressed to Mr. Watkins at 30892 Steepel Chase Drive in San Juan Capistrano, CA 92675. (Sachs Decl ¶ 10, Exh. C [identifying File No. 212555 and contact Wicked Motor Sports].) The invoice states the subject vehicle was towed because it was "Abandoned on Private Property." The invoice contains no generation date. Sachs claims this document was never sent to the DMV. (Id. ¶ 13.)

On April 7, 2026, Plaintiff's counsel sent Wicked Motor Works' counsel a letter addressing the Trust's ownership of the vehicle, the misidentified vehicle in the March 11, 2026, invoice, the missing repair work estimates, the Lien Sales Service invoice which stated the vehicle had been "Abandoned on Private Property," that the vehicle was not abandoned due to Plaintiff's frequent contacts with counsel, and issues concerning probate not being necessary to submit the DMV form for transferring vehicles. (Glaubiger Decl. ¶ 6, Exh. E; Declaration of Jachin M. Anrig ¶ 2.)

On April 8, 2026, defense counsel sent Plaintiff's counsel a response, disputing Plaintiff's claim that he had established an unqualified right to title and possession of the vehicle, identifying concerns with post-death DMV transfer and creditor rights, and requesting documentation establishing the statutory basis for the transfer. (Glaubiger Decl. ¶ 7, Exh. F; Anrig Decl. ¶

3.) The response also disputed whether Plaintiff had properly transferred ownership through the DMV by complying with Vehicle Code section 5910, subdivision (b)(2).

On April 21, 2026, defense counsel sent a letter to the California Automotive Repair Bureau, stating “competing claims have been made regarding ownership of and authority over the vehicle,” and Mr. Watkins had delivered the vehicle “Wicked” “for purposes of fabricating and partially installing a custom body kit.” (Anrig Decl. ¶ 4.) The letter also states counsel was retained by “Wicked Motor Sports, LLC,” but is signed “Attorneys for Wicked Motor Works.” (Id. ¶ 4, Exh. A.) Plaintiff’s counsel presents photographs, showing the interior of the vehicle disassembled and unfinished condition. (Id. ¶ 5.) The court cannot determine when these photos were taken and cannot determine what is in the photos because they are black and white photocopies.

On April 28, 2026, the DMV issued two notices of pending lien sale. (Barsoumian Decl., Exh.

4.) The notices were addressed to Mr.

Watkins and the Trust and stated an application for authorization to hold a lien-sale on the vehicle was filed by the lienholder (Wicked Motor Sports) and instructing Plaintiff to complete and sign the Declaration of Opposition in order to contest the action. (Id.,

Exh. 4.) The notices listed a \$99,999.99

repair cost and a \$700 storage fee. Plaintiff

completed, signed, and returned the Declaration of Opposition to the DMV by certified mail on May 4, 2026. (Id.

¶ 7, Exh. 5.)

Plaintiff claims he has offered to pay Defendants

properly substantiated charges for work on the vehicle on behalf of the Trust,

but no requested documentation was provided and the vehicle remains in

Defendants’ possession. (Barsoumian

Decl. ¶ 8, Exh. 5.)

Based on the consistency of the parties’ communications

between March 11, 2026 and April 28, 2026, Defendants were aware that ownership

of the vehicle was in dispute no later than March 27, 2026. Defendants also had proof that Plaintiff had

successfully registered the vehicle in the Trust’s name that same day. However, Defendants had engaged Lien Sales

Service prior to receiving Plaintiff’s documentation concerning the transfer of

vehicle ownership to the Trust.

The court notes that defense counsel questioned the validity of the transfer (seeking a copy of the REG 5 form which is not required to be presented to any entity other than the DMV). (Glaubiger Decl., Exh. F at pp. 1-3.) In his April 8, 2026, response, defense counsel asserted the Trust's claim of ownership was conclusory because the vehicle was not a trust asset at the time of Mr. Watkins' death. (Id., Exh. F at p. 1.) According to defense counsel, a copy of Mr.

Watkins' will indicated the will was a pour-over will which states "All of my property . . . shall be distributed to the then trustee of my revocable living trust[.]" (Id., Exh. F at p.

1.) Neither party provided a copy of this document for the court to determine the validity of this statement. And the court cannot confirm the validity of this statement because the March 27, 2026, registration card indicates vehicle registration and ownership was transferred to the Trust. The transfer not have occurred without providing the following documents to the DMV:

certificate of ownership and registration card; certified death certificate for the decedent owner; a completed REG 5 form Affidavit to transfer without Probate; waiting the 40-day post-death period; establishing trustee authority to act on behalf of the trust; and the DMV's issuance of title in the Trust's name. (See Veh. Code, §§ 5910, 9255 , Prob. Code, § 18100.5.)

Based on this, it appears the Trust was the proper owner of the vehicle at the time Lien Sales Service issued the lien-sale application on April 1, 2026.

However, the outstanding balance owed by Mr. Watkins concerning the vehicle prior to his death indicates that Plaintiff's transfer was secured without fully complying with Vehicle Code section 5910, subdivision (b). An authorized person "may secure a transfer of registration of the title or interest of the decedent upon presenting to the department all of the following," including a certificate under penalty of perjury stating "There are no unsecured creditors of the decedent or, if there are, the unsecured creditors of the decedent have been paid in full or their claims have been otherwise discharged." (Veh. Code, § 5910, subd. (b)(2)(D).)

The parties' evidence indicates the balance owed for Defendants' repair work became owed on March 5, 2026. Although Plaintiff did successfully transfer

ownership and registration on March 27, 2026, the transfer occurred before Defendants filed the lien-sale application (on April 1, 2026) but after Plaintiff learned of an outstanding amount was owed for work on the vehicle. Thus, Defendants, as alter egos, are outstanding unsecured creditors of Mr. Watkins and now the Trust as his successor. (See Civ. Code, § 3068 [granting every repair shop a lien dependent on possession for compensation owed for making repairs, performing labor, furnishing supplies or materials, and for storage or safekeeping of any vehicle subject to registration].)

Here, Wicked Motor Sports is the registered repair shop. As, Plaintiff's claim of illegality based on Defendants deeming themselves as lienholder on the lien-sale application also fails.

Civil Code section 3068 grants every repair shop a lien dependent upon possession for compensation owed for making repairs, performing labor, furnishing supplies or materials, and for storage or safekeeping of any vehicle subject to registration under the Vehicle Code. (Civ. Code, § 3068.) A Section 3068 lien is created automatically by operation of law when a written statement of charges is presented to the registered owner, or 15 days after the work is completed, whichever occurs first. (Civ. Code, § 3068, subd. (a).) The lien exists only so long as the repair shop retains physical possession of the vehicle. However, the lien is extinguished, with the repair shop losing its right to conduct a lien sale, unless the lienholder applies for authorization to conduct the sale or files a court action within 30 days after the lien arises. (Civ. Code, § 3068, subd. (b)(1).) Otherwise, the lien is extinguished by operation of law.

Because the invoice served on March 11, 2026, appears to reference the wrong vehicle, the lien was created on March 20, 2026, 15 days after Defendants claim the work was completed.^[1] (See Sachs Decl., Exhs. B, C [listing work completion date as March 5, 2026, and storage date starting March 5, 2026].) The lien has not been extinguished because the lien-sale application was filed April 1, 2026, 12 days after the lien arose.

As for the statement that the vehicle was "Abandoned on Private Property," the evidence does not demonstrate that the information was communicated to the DMV. Plaintiff notes that the certified mailing document, attached as Exhibit D the Sachs declaration, suggests the Lien Sales Service invoice which included the "Abandoned on Private Property" language and the lien-sale application were

mailed to the DMV. (Anrig Decl. ¶ 9; Sachs Decl., Exh. D.) However, this does not establish where the documents in the exhibit were mailed.

Because the evidence does not demonstrate “illegality,” the court finds that the alleged conduct underlying the Second Cause of Action for slander of title is protected activity.

2. Arise out of

“A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) Courts must consider the elements of each cause of action and whether Defendant sufficiently identified the protected activity each cause of action rests on.

(Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.) Filing an action after protected activity occurred “does not mean the action arose from the activity for the purposes of the anti-SLAPP statute.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.)

“Moreover, that a cause of action arguably may have been ‘triggered’ by protected activity does not entail it is one arising from such. . . . the critical consideration is whether the cause of action is based on the defendant’s protected free speech or petitioning activity.” (Ibid.; see Wong v. Wong (2019) 43 Cal.App.5th 358, 367.) If the allegations referring to protected activity are only incidental to a cause of action based essentially on nonprotected activity, collateral references to protected activity should not subject the cause of action to the anti-SLAPP statute. (Martinez v. Metabolife Int’l, Inc. (2003) 113 Cal.App.4th 181, 188.)

Based on the supporting evidence and the FAC’s allegations, the court finds that Plaintiff’s Second Cause of Action arises from protected activity.

The claim arises from Plaintiff claim that defendant Wicked Motor Sports, directly or through its agent acting at its direction, published to the DMV lien-sale documentations that states the subject vehicle was “Abandoned on Private Property” and that as a result, Plaintiff has suffered pecuniary loss and impairment to the vehicle’s title. (FAC ¶¶ 22, 26.) Plaintiff further alleges the statement was

knowingly false and made with knowledge of falsity, with reckless disregard for its truth, with actual malice, and without privilege or justification, based on documents and letters exchanged between Plaintiff or Plaintiff's counsel and defense counsel, and defense counsel's own mention of the competing claims to the Bureau of Automotive Repair on April 21, 2026. (FAC ¶ 24.)

The primary act underlying this claim is Defendants' supposed statement "Abandonment on Private Property" to the DMV.

Therefore, Defendants sufficiently demonstrate the Second Cause of Action arises from protected activity.

C. Second

Step: Plaintiff fails to meet her burden of demonstrating a probability of success on the merits on the Second Cause of Action because the Litigation Privilege absolutely bars her cause of action based on Defendants' filing of the lien-sale application.

The second step of the anti-SLAPP analysis is a "summary-judgment-like procedure" limited to whether "the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment.

[The court] accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. Claims with the requisite minimal merit may proceed." (Baral v.

Schnitt (2016) 1 Cal.5th 376, 384-385, citations omitted.) Plaintiff need only make a showing of minimal merit by presenting evidence addressing the key facts of each claim. (Grewal v. Jammu (2011) 191 Cal.App.4th 977, 990-994 [find plaintiff met burden on libel claim by submitting prima facie evidence supporting elements].)

"It is the responsibility of . . . the party opposing the anti-SLAPP motion[] to organize the evidence and develop its arguments at the second step of the analysis."

(Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism (2018) 23 Cal.App.5th 28, 50.)

It is not the court's "job to sift through mountains of evidence and figure out whether they support each element of a prima facie case." (Ibid.) Nor is it the court's job "to supply the legal authority and analytical framework to determine the legal sufficiency of the claims." (Ibid.)

The elements of slander of title are a publication, which is without privilege or justification, which is false, and which causes direct and immediate pecuniary loss. (*M.F. Farming, Co. v. Couch Distributing Co.* (2012) 207 Cal.App.4th 180, 198-199 [“If the matter is reasonably understood to cast doubt upon the existence or extent of another’s interest in land, it is disparaging to the latter’s title where it is so understood by the recipient[.]”], disapproved on other grounds by *Baral v. Schnitt* (2016) 1 Cal.5th 376, 392; *Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1051. See also *Chao Fu, Inc. v. Wen Ching Chen* (2012) 206 Cal.App.4th 48, 58 [a claim of slander of title “may be prosecuted only by someone with an interest in the property.”]. But see *Glass v. Gulf Oil Corp.* (1970) 12 Cal.App.3d 412, 419 [elements are (1) false and unprivileged disparagement, (2) of title to property and (3) resulting in actual pecuniary damage].) “California has adopted the definition of slander of title set forth in section 624 of the Restatement of Torts.” (*Howard v. Schaniel* (1980) 113 Cal.App.3d 256, 263-264 [Rest.2d Torts, §§ 623A, 624, and 633].) Because the publication must be without privilege or justification, malice—express or implied—is an essential ingredient of the cause of action, and without proof of malice the action must fail. (*Id.* at p. 263.)

Defendants contend Plaintiff cannot demonstrate a minimal probability of success on the merits because the actionable conduct is privilege under the absolute Litigation Privilege and the Common Interest Privilege.

1. The conduct underlying the slander to title cause of action is protected by the absolute Litigation Privilege (Civil Code, section 47, subdivision (b)).

Defendants contend any communication which is integral to a Section 3071 proceeding is absolutely privileged. (Mot. at pp. 13:18-14:28.) As such, Defendants assert that the Application filed on April 1, 2026 is privileged.

The litigation privilege arises when litigation is “contemplated in good faith and under serious consideration as a means of obtaining access to the courts for the purpose of resolving the dispute.” (*Haneline Pacific Properties, LLC v. May* (2008) 167 Cal.App.4th 311, 319.) The privilege does not apply to statement made as a “tactical ploy to negotiate a

bargain.” (Edwards v. Centex Real

Estate Corp. (1997) 53 Cal.App.4th 15, 36.)

“A plaintiff cannot show a probability of prevailing on the merits of a cause of action for anti-SLAPP purposes where the cause of action is barred by the litigation privilege codified in Civil Code section 47.” (Flickinger v. Finwall (2022) 85 Cal.App.5th 822, 840.)

The litigation privilege applies to any communication

“(1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.” (Medallion Film LL v. LLC v. Loeb & Loeb LLP (2024) 100 Cal.App.5th 1272, 1290.) The privilege applies to statements made during a trial or other proceedings and may also apply to “steps taken prior thereto, or afterwards. . . . The privilege is absolute and applies regardless of malice.” (Ibid. [quoting Flickinger, supra, 85 Cal.App.5th at p. 840].)

The privilege bars all tort causes of action covered by the communication except malicious prosecution.

(Hagberg v. California Fed. Bank (2004) 32 Cal.4th 350; Silberg v. Anderson (1990) 50 Cal.3d 205 [encompassing testimony in court, statements in pleadings, depositions, motions, demand letters, pre-litigation communications, and statements made outside the courtroom when no function of the court or its officers is involved].)

The privilege also extends to communications made before the filing of a lawsuit as long as litigation is contemplated in good faith and under serious consideration. (Action Apartment Ass’n, Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241.) Civil Code section 47, subdivision (b) also provides an absolute privilege for communications made as part of a judicial or quasi-judicial proceeding. (Klem v. Access Ins. Co. (2017) 17 Cal.App.5th 595, 609, 613; Action Apartment Ass’n, Inc., supra, 41 Cal.4th at p. 1241.) The privilege applies regardless of malice even if “the publication is made outside the courtroom and no function of the court or its officers is involved.” (Alpha & Omega Development, LP v. Whillock Contracting, Inc. (2011) 200 Cal.App.4th 656, 664.)

Based on the moving parties’ evidence and the FAC’s allegations, the DMV’s process for authorizing lien sales is a “quasi-judicial” proceeding. (See Kibler v. N. Inyo County Local Hosp. Dist. (2006) 39 Cal.4th 192, 199-204 [noting “official proceeding” where a process is mandated by statute, being subject to

judicial review via administrative mandate, and serving matters of public significance comparable to quasi-judicial agencies].)

Here, the lien-sale application and its supporting documents constitute communications made in initiating an official quasi-judicial proceeding by a party authorized by law (auto repair facilities have Section 3068 lien by operation of law but must file the Section 3071 application to perfect or prevent the expiration of the lien), in anticipation of litigation by Plaintiff based on Plaintiff's communications between March 27, 2026 and the filing of the application on April 1, 2026. Furthermore, the moving papers indicate Wicked Motor Sports retained counsel at some point in March of 2026 in order to "to submit its asserted claim and the parties' competing rights to judicial determination if an opposition made a court action necessary." (Barsoumian Decl. ¶ 11.) Defendant Barsoumian states the purpose of invoking the process was to preserve and pursue Wicked Motors Sports' asserted claim, provide notice to persons claiming an interest in the vehicle, and obtain a lawful resolution of the parties' dispute. (Id. ¶ 12.) Barsoumian directed counsel to obtain records that would establish Wicked Motor Sports' legal right to the vehicle, but learned that Plaintiff never complied with the request for further documentation. (Id. ¶ 13.) Barsoumian insists that he did not instruct Lien Sales Service to conceal Plaintiff's claim in the application or instruct Lien Sales or any other person to make false statements denying Plaintiff had a claimed interest in the vehicle. (Id. ¶¶ 13-14.)

The court agrees that litigation was contemplated when Barsoumian retained counsel concerning vehicle ownership in anticipation of litigation allowed by Civil Code section 3071. (See Civ. Code, § 3071, subd. (c)(2)-(5), (d) [allowing the lienholder and declarant of the declaration of opposition to file court actions to contest claims].) Furthermore, the lien-sale application has a logical relation and connection to this action because it is what Plaintiff bases the slander of title claim—Plaintiff claims filing of the lien-sale application with an alleged knowingly false statement has caused how to Plaintiff's interest in the vehicle and the vehicle's title. Finally, Plaintiff fails to demonstrate the lien-sale application or the supposed "abandonment" statement fall within the exceptions listed in Civil Code section 47, subdivision (b)(1)-(5).

Thus, the court finds that Defendants demonstrate the April 1, 2026, application is absolutely privileged through the litigation privilege, barring Plaintiff's slander of title claim.

The court does not address Defendants' contentions concerning the Common Interest Privilege.

2. Plaintiff's request for further discovery is noncompliant.

Plaintiff states that if the court has any doubt on the record, the court should deny or continue the instant motion and grant Plaintiff leave to conduct discovery under Code of Civil Procedure section 425.16, subdivision (g), concerning the certified DMV lien-sale file for the vehicle, Lien Sales Service's file No. 212555, Lien Sales Service's earlier file No. 212555 concerning the same vehicle, the deposition of Lien Sales Service's principal, Ron Sachs, and an inspection of the vehicle and each of its removed components and parts, wherever located. (Opp. at p. 13:18-27.) According to Plaintiff, good cause exists because the requested discovery is in the exclusive control of Defendants, their agent, and the DMV, and it is dispositive to whether the "abandonment" language appears in the lien-sale application and its supporting documents. (Opp. at p. 13:27-28.)

In response, Defendants contend Plaintiff's discovery request does not require denials or continuance because the court can determine whether the "abandonment" statement is a privileged and protected activity as alleged in the FAC. (Reply at pp. 10:19-11:2.)

All discovery proceedings in an action are stayed upon the filing of a special motion to strike, and the stay remains in effect until entry of the order ruling on the motion. (Code Civ. Proc., § 425.16, subd. (g).) However, the court may order specific discovery upon the filing of a noticed motion and showing good cause for the further discovery. (Ibid.)

Here, no such motion was filed. At most, Plaintiff included a short paragraph in the opposition which does not constitute a properly filed and noticed motion showing "good cause" for further discovery.

(See *Braun v. Chronicle Publishing Co.* (1967) 52 Cal.App.4th 1036, 1052 [denying oral request for discovery because no timely or properly noticed motion was filed].) Because Plaintiff has failed to comply with the requirements of Section 425.16(g), the

court denies Plaintiff's request for a denial or continuance to perform further discovery.

Therefore, the court also grants Defendant's Special Motion to Strike the Second Cause of Action from the First Amended Complaint.

D. Defendants are entitled to attorney fees under section 425.16, subdivision (c)(1).

"[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs" reasonably incurred in connection with litigating the motion. (Code Civ. Proc., § 425.16, subd. (c)(1); Six4Three, LLC v. Facebook, Inc. (2025) 109 Cal.App.5th 635, 660; 569 East County Boulevard, LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 433 [not including matters unrelated to the anti-SLAPP motion].)

Because defendants Wicked Motor Sports and Barsoumian have prevailed on their motion, they are entitled to attorney fees and costs reasonably incurred in connection with litigating this motion.

The court orders Defendants to file and serve a noticed motion for attorney fees and costs within twenty (20) days of the issuing of this order.

CONCLUSION and ORDER

Defendants Wicked Motor Sports's and Krikor Antranik Barsoumian's special motion to strike the First Amended Complaint's Second Cause of Action is granted.

Defendants must file and serve a noticed motion for attorney fees and costs reasonably incurred in connection with the instant motion within twenty (20) days of the issuing of this order.

Defendants Wicked Motor Sports and Krikor Antranik Barsoumian to give notice.

[1] The court also notes that the invoice

does not include an invoice date.